Access to Justice and Artificial Intelligence (AI)

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Abstract

The Canadian legal system is experiencing a huge backlog of cases waiting to be tried in various courts and administrative tribunals. This has become a major issue in dispensing fair and timely justice in line with *Canadian Charter of Rights and Freedoms*[1] requirements, and the expected access to justice standards for adjudicating legal disputes quickly and efficiently. The use of artificial intelligence is one of the main proposed reforms to help improve our judicial system to tackle the backlog issue, resolve or adjudicate cases in a timely manner, and satisfy the publicly promoted goal of access to justice. This paper highlights some aspects of the increasing usage of digital technologies in the legal domain, both locally and globally, and how the recent COVID-19 pandemic has accelerated the pace of adopting the digitalization process in various courts and tribunals. The paper discusses the implementation of artificial intelligence (AI) in our legal system in three stages: (1) basic legal functions automation; (2) intermediate progress through judicial decision-making via artificial intelligence; and (3) advanced artificial intelligence implementation through machine learning, legal research, and virtual legal experts. The legal profession is at a critical juncture in determining the pace and extent of adopting artificial intelligence-based software applications to facilitate various processes in the Canadian legal system and overcome obstacles to achieving timely access to justice.

I. Introduction

Despite the fact there are more lawyers and paralegals in Canada than ever before, the law is less accessible than it has ever been.[2] This can have a significant impact on not only the legal rights of Canadians but also on their economic, social, and medical well-being.[3] A strong and timely justice system[4] not only protects against the contraventions of rights, but also fosters social order, conveys a

[1] Part I of the *Constitution Act, 1982*, being Schedule B to the *Canada Act 1982* (UK), 1982, c 11.

[2] "Are There Too Many Lawyers in Canada?" (2023), online: *Clearway Law* <https://clearwaylaw.com/are-there-too-many-lawyers-in-canada

[3] Neil McMahon, "Law of the Jungle: Lawyers Now an Endangered Species" (11 October 2014), online: *The Sydney Morning Herald* <https://www.smh.com.au/national/law-of-the-jungle-lawyers-now-an-endangered-species-20141011-114u91.html>.

[4] Bob Runciman & George Baker, "Delaying Justice is Denying Justice" in the Report of the Standing Senate Committee on Legal and Constitutional Affairs (August 2016), online (pdf): <https://sencanada.ca/content/sen/committee/421/LCJC/Reports/CourtDelaysStudyInterimReport_e.pdf>.

strong message to violators of the law, and upholds civic ideal standards. On the other hand, the lives of those involved in legal conflicts are substantially impacted. In a recent survey,[5] it was shown that more than half of those who have encountered at least one civil issue said that the conflict had a "severe" or "moderate-to-severe" impact on their day-to-day lives.

It is also a well-established fact that justice is frequently out of reach for those with average resources, despite the fact that the causes of this inaccessibility are widely established and well-known. Growing expenses[6] and increased complexity—both in terms of the law itself and the institutions that administer and enforce it—are to blame. In Canada these issues are extremely severe for the most vulnerable segments of our population. According to a recent study[7] on access to justice, those who are less advantaged are more likely to become involved in legal conflicts and are less prepared to handle them. Although it is the Canadian government's responsibility to take immediate action to address the pressing problem of access to justice in Canada, legal professionals also have a responsibility[8] to "better justice and to continually generate the good."[9]

The integration of artificial intelligence (AI) into our legal system is one of the many reforms that may be made to the Canadian judicial system to increase access to justice, reduce the growing backlogs of pending cases, and resolve legal conflicts quickly, cheaply, and efficiently.

II. Technology's Impact

Technological advancements have reduced the cost of and increased accessibility to products and services in many spheres of human endeavor. Yet, so far, technical advancements in law have tended to have the opposite impact from those in medical and other domains. This truth is greatly influenced by the law's perceived intransigence. The perception of the law is that it is a complex organism that requires the expensive involvement of legal specialists in order to be fully understood, applied, and implemented.

With this perception, even when the ever-changing technology becomes more advanced and quicker, the resulting tendency in the legal industry for legal services to expand makes them even more expensive and complex._Will this always be the case for the integration of technology in the legal domain?

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[5] Statistics Canada, *Uniform Crime Reporting Survey (UCR)* (2022), online: *Statistics Canada* <https://www23.statcan.gc.ca/imdb/p2SV.pl?Function=getSurvey&SDDS=3302>.

[6] In 2022, inflation was at its peak of 8 percent: the highest ever. See Trading Economics, "Canada Inflation Rate" (n.d.), online: <https://tradingeconomics.com/canada/inflation-cpi>.

[7] Canadian Bar Association, "Study on Access to the Justice System—Legal Aid" (December 2016), online (pdf): <https://www.cba.org/CMSPages/GetFile.aspx?guid=8b0c4d64-cb3f-460f-9733-1aaff164ef6a>.

[8] Noel Semple, "Better Access to Better Justice: The Potential of Procedural Reform" (2022) 100:2 Can Bar Rev 124, online: <https://cbr.cba.org/index.php/cbr/article/view/4772/4523

[9] *Ibid*. This phrase is inspired by Semple's work.

Intelligent devices[10] such as personal computers and electronic gadgets are progressively influencing our society, culture, way of understanding and resolving issues, and professional approach. To complete tasks, we constantly rely on algorithms that are typically more precise and reliable than ourselves. Machine learning and natural language processing advances have given robots the ability to tackle fresh issues autonomously and reason their way to independent outcomes. No longer limited to basic repetitive tasks, the new frontier of automation will see AI applied to sophisticated activities that were previously thought to be solely within the realm of human intellect.[11]

With this changing paradigm shift and context, the law, like most other areas, is grappling with a basic question: "to what degree should robots complement humans, or can a machine produce more accurate, timely, and equitable legal results than an educated and experienced legal human mind!"

III. Digitalization or the Online Transformation

It is an unarguable fact that technology can help in the delivery of legal services. In general, there are two ways in which AI can supply legal services to a considerably large section of the public at a significantly lower cost than human legal resources. First, it can aid in the supply of legal services such as basic automation of court forms or papers and acceptance of online applications. Second, it can take the place of (human) legal specialists. AI[12] is described as a "set of linked technologies" powered by algorithms capable of carrying out activities that would otherwise need human intelligence and reasoning power.

There is also a range in the degree to which AI can be involved in decision-making, from support to judges to full automation of legal processes; for instance, AI can be used to determine welfare eligibility in the processes carried out by the government agency Ontario Works.[13]

Online or *basic (AI-based)* technologies for providing "aid in the supply of legal services" such as online automation of applications are being used with growing regularity all around the world. As Tania Sourdin, Jacqueline Meredith, and Bin Li pointed out, many consumers now find legal services online and learn about judicial procedures, options, alternative dispute resolution (ADR) methods, and alternatives to human representation using web-based information systems. There are

[10] Smartphones, notepads, and iPads (or IoT [Internet of Things])—devices such as those that control heaters or air conditioners using Internet-based smart apps like *ecobee*, etc.

[11] Mufit Yilmaz Gokmen, "Toyota to Apply Artificial Intelligence to Boost Efficiency in Its Factories" (5 May 2022), online: *Global Fleet* <https://www.globalfleet.com/en/manufacturers/global-north-america/news/toyota-apply-artificial-intelligence-boost-efficiency-its#:~:text=The%20AI%20will%20analyze%20manufacturing,improve%20processes'%20quality%20and%20safety.>.

[12] There are two main forms of AI: (1) explicitly written, closed-rule algorithms ("legal expert systems") and (2) taught, machine-learning (ML) algorithms ("predictive analytics").

[13] For more information, see Ontario Works at <https://www.ontario.ca/page/ontario-works>.

sophisticated technologies available that can manage paperwork and files in disputes, simplifying and reducing the time required to examine and evaluate materials.[14]

Several courts have adopted replacement technologies that are drastically altering the way conflicts are resolved. Free Internet calls (E-calls over Internet), e-filing, video conferencing, and entire e-courts are becoming more common in legal jurisdictions around the globe. All of these platforms reduce the amount of time necessary to handle cases and as their use grows we will see a fall in the cost of delivering legal services.[15]

Yet, AI innovations that primarily affect the general productivity of judicial systems do not solve the law's inherent complexity. Even the technology that enables a more efficient supply of legal services is unlikely to change the reality that most legal interactions still require the costly participation of a legal professional to secure optimal results. But recent AI breakthroughs may have great influence here: if the legal reasoning process can be automated, access to justice will no longer be in the hands of a profession that has a financial incentive[16] to keep a monopoly on legal services.

AI applications in the public sphere were limited to countries other than Canada until 2017, but this situation is changing rapidly.[17] The future of administrative regulation and adjudication in Canada will almost certainly include AI. For example, in June 2018, several institutions in the Canadian government (the Department of Justice; Immigration, Refugees and Citizenship Canada (IRCC)[18] and likely other governmental institutions)[19] issued "invitations to bid" and "requests for information" in search of AI-based solutions to incorporate into their operations. IRCC began using an algorithmic impact assessment-based system in January 2022[20] for the advanced analytics triage of overseas temporary resident visa applications.[21]

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[14] Tania Sourdin, Jacqueline Meredith & Bin Li, *Digital Technology and Justice: Justice Apps*, 1st ed (London, UK: Routledge, 2020)

[15] *Ibid* at ch 2, Digital Technology Use in the Justice Sector.

[16] The average hourly rate of a family lawyer in Ontario ranges between $300-$350 per hour, as highlighted on the LSO website at <https://lso.ca/about-lso/careers/working-with-the-law-society/call-for-expressions/fee-schedule>; however, a normal divorce process, for instance, without child custody or division of matrimonial property considerations, takes an average of 4-6 months with 50-70 hours of effort by a lawyer: see <https://www.separation.ca/help-center/faqs/divorce/>.

[17] On June 16, 2022, the federal government introduced Bill C-27, titled *Digital Charter Implementation Act, 2022*. One of three pillars of the bill is the introduction of the *Artificial Intelligence and Data Act* (AIDA). If it passes and receives royal assent, the AIDA would become Canada's first law specifically dedicated to regulating AI.

[18] "How Artificial Intelligence Could Change Canada's Immigration and Refugee System," *The Sunday Magazine* (2 August 2019), online: *CBC Radio* <https://www.cbc.ca/radio/sunday/november-18-2018-the-sunday-edition-1.4907270/how-artificial-intelligence-could-change-canada-s-immigration-and-refugee-system-1.4908587>.

[19] Department of Justice Canada, "2018-19 Departmental Plan: Planned Results: What We Want to Achieve this Year and Beyond" (13 May 2022), online: <https://www.justice.gc.ca/eng/rp-pr/cp-pm/rpp/2018_2019/rep-rap/p3.html>.

[20] it is not purely an AI-based system, as IRCC in their January 24, 2022 press release confirmed, routine visa files can be assessed 87 percent faster using this system: see <https://www.canada.ca/en/immigration-refugees-citizenship/news/notices/analytics-help-process-trv-applications.html>.

[21] Chinook is another decision-making tool that is based on Microsoft Excel. It increases efficiency and improves client service by decreasing the impacts of system and broadband latency, thus improving processing times. See <https://www.canada.ca/en/immigration-refugees-citizenship/corporate/transparency/committees/cimm-may-12-2022/chinook-development-implementation-decision-making.html>.

IV. The Way the World is Turning …

With all these technological advancements, the real goal is to employ AI to deliver a more robust decision-making process, which would leave less room for human interactions and pave the way for online courts. According to futurist Richard Susskind, a future court system might employ AI technology to educate individuals on their odds of success and even deliver automated decisions. These "front ends"[22] to the justice system could be provided by the private sector, educational institutions, charities, or a combination of these, to reduce the cost and administrative burden of disputes, while preserving the traditional legal system for cases that truly require the assistance of lawyers and adjudication by judges.

Susskind expanded on his well-known beliefs regarding the employment of technology in the courts, predicting that AI would play a larger role in the future, with online courts becoming the norm for many claims. On one occasion he concluded that he believed that "there is no aspect of justice for low-value civil claims in which [the] traditional system outperforms the online system. Indeed, in many aspects … I believe the online system trumps the traditional system."[23] He recognized that there were various objections to the idea of online courts, most of which were based on preconceived notions of the centuries-old typical justice system. However, it is strange that most individuals who support online courts also invoke justice. He further added that the COVID-19 pandemic has proved that video hearings "operate quite well" and that most studies so far "suggest that the level of service is mainly adequate"[24] and "[d]ropping court hearings into Zoom is not a 'shift in paradigm.'"[25]

But for the online courts shift, the ground-reality that is seconding Susskind views is that judges and attorneys rapidly adapted this approach, and some even altered their minds about the technology, but while some could see no return to the past, others were simply waiting for the COVID-19 virus to pass. Despite advancing automated technologies in certain ways, COVID-19 in fact actually slowed the true technology revolution.

Though Susskind future online courts yet to take ground in Canada, but AI applications in the law domain are now a reality, and they are being used in many other areas of our society. The use of this technology is apparently intended to improve the court system by streamlining and simplifying it and should eventually promote broader access to justice for society. Yet, as this technology spreads, there

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[22] This refers to AI-based applications used in the legal domain, and is a term used by Richard Susskind. See *infra* note 23.

[23] Richard Susskind, speaking while delivering the online *Sir Henry Brooke Annual Lecture 2020.* The Seventh BAILII Sir Henry Brooke Lecture about "The future of courts: increasing access to justice!"

[24] Richard Susskind's speech about "The future of courts: increasing access to justice!"

[25] Dan Bindman, "Susskind Advocates Role of AI In Transforming Courts" (4 December 2020), online: *Legal Futures* <https://www.legalfutures.co.uk/latest-news/susskind-advocates-role-of-ai-in-transforming-courts>.

are certain crucial precautions to take. It is critical to remember that the employment of AI is intended to be helpful and user-centered: it is meant to cast a broad net to increase access to justice.[26]

The implementation of AI in the legal domain can be classified into three stages: basic, intermediate (in courts/tribunals), and advanced (where judgments can be delivered based on AI algorithms).

A. Basic Legal Functions Automation

Besides basic automation and online adaptation of court systems, access to justice can be considerably enhanced by using basic AI-based expert systems inside a larger online dispute resolution (ODR)[27] framework. Basic expert systems can cross the "implementation gap," which continues to prevent AI adoption in the legal domain. By creating multidisciplinary expert systems that meet user needs through straightforward, non-legalistic user interfaces, this gap may be further closed. Expert knowledge from the justice and conflict resolution areas would be added to the system's knowledge base. The inference engine, which is positioned between the knowledge base and a questionnaire-based user interface, is built on a conditional logic rule-based system.

Problem diagnosis, personalized information distribution, self-help support, triage, and streaming into later ODR procedures are all features of an expert system.[28] Its usability will be improved by using human–computer interaction and effective computing strategies that address the social and emotional aspects of technology. This conceptualization would be supported by empirical findings from an innovative initiative aimed at developing an expert system for an ODR-enabled civil justice tribunal.

This could be the basic use of AI-based algorithms, especially in an ODR system[29] where the decision would be rendered by the machine and could be called an Online Dispute Resolution Tribunal or ODR Tribunal.

B. Decision-Making via AI: Courts and Tribunals[30]

As the technology progresses, people may look forward to certain types or categories of judicial decisions being handled by AI. For instance, in the small claims' courts,[31] the standards of evidence

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[26] In contrast, there is rising worry regarding the questionable use of AI in aiding with the prevention of recidivism and in making historical data-based choices. There is a need for AI-based apps that will speed up the sentencing process and minimize backlogs in the legal system. Refer to the COMPAS and ProPublica debate: see *infra* note 46.

[27] Department of Justice Canada, "Dispute Resolution Reference Guide: Online Dispute Resolution" (25 August 2022), online: <https://www.justice.gc.ca/eng/rp-pr/csj-sjc/dprs-sprd/res/drrg-mrrc/10.html>.

[28] Darin Thompson, "Creating New Pathways to Justice Using Simple Artificial Intelligence and Online Dispute Resolution" (2015) 2 Intl J Dispute Resolution 4 at 5.

[29] For more information, refer to the ADR Institute of Canada at <https://adric.ca/online-dispute-resolution>.

[30] Jesse Beatson, "AI-Supported Adjudicators: Should Artificial Intelligence Have a Role in Tribunal Adjudication?" (2018), online (pdf): <https://www.ccat-ctac.org/wp-content/uploads/2021/11/ShouldAIHaveaRoleinTribunalAdjudication.pdf>.

[31] For instance, Ontario Small Claims Court applies to disputes of up to $35,000; see *Small Claims Court Jurisdiction and Appeal Limit*, O Reg 626/00, s 1.

that are applicable in "regular" courts are greatly relaxed or occasionally eliminated. A middle-level AI-based application could help with decisions in straightforward instances where the majority of the evidence is written down and the adjudicative procedures are simple.[32]

Likewise, certain tribunals, such as the Ontario Landlord and Tenant Board, which decides crucial issues involving parties' legal rights, do not mandate that its adjudicators hold law degrees.[33] When technology has been employed to enhance procedures and speed up dispute resolution, as it did with British Columbia's online Civil Resolution Tribunal, the outcomes seem to have been beneficial.[34] The success of this tribunal confirms that we are willing to make changes to the legal system in an effort to make it more effective. The BC model could be adapted here in Ontario as an intermediate level of AI applications.

C. Advanced AI Implementation with the Power of Proposed Bill C-27[35]

With the success of basic and intermediate level AI applications in the legal domain, and with passage of time (during which the public will become used to artificial intelligence-based adjudication), it is evident that AI's adaptation will be welcomed in all aspects of the legal fraternity. For example:

Super (human) legal professionals: Many lawyers are already employing AI, particularly machine learning, to examine contracts[36] more quickly and reliably, identifying flaws and errors that human lawyers may have overlooked. Algorithms have long been employed in discovery—the legal process of discovering significant documents from a defendant in a lawsuit. Additionally, machine learning is now being used in this effort.

One of the difficulties in seeking and identifying all essential documents is trying to consider all of the many ways that a subject or topic that might be expressed or referred to. Simultaneously, certain papers are shielded from review, and counsel (or the judge) may endeavor to limit the extent of the search so as not to burden the producing party. By combining controlled and unsupervised learning, machine learning could thread this needle.

Legal research: Another legal domain in which AI is already being widely used is legal research. Because AI has been smoothly integrated into many research services, practicing legal professionals may be unaware when they are using it. Westlaw Edge[37] is one such service. Semantic search has

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[32] For upcoming AI-based projects, refer to the Law Commission of Ontario, "AI, ADM and the Justice System: Project Overview and Status" (n.d.), online: <https://www.lco-cdo.org/en/our-current-projects/ai-adm-and-the-justice-system>.

[33] Ontario Public Appointments Secretariat, "Appointee Biographies: Landlord and Tentant Board (Tribunals Ontario)" (n.d.), online: <https://www.pas.gov.on.ca/Home/AgencyBios/451>.

[34] Elizabeth Cordonier, "An Introduction to British Columbia's Civil Resolution Tribunal" (2016), online (pdf): <https://wt.ca/app/uploads/An-Intro-to-BC-Civil-Resolution-Tribunal.pdf>.

[35] Maggie Arai, "Five Things to Know About Bill C-27" (27 January 2023), online: *Schwartz Reisman Institute for Technology and Society* <https://srinstitute.utoronto.ca/news/five-things-to-know-about-bill-c-27>.

[36] Superlegal is one of the most widely used AI apps for reviewing contracts. See <https://www.superlegal.ai>.

[37] Launched by Thomson Reuters. See Westlaw Edge at <https://legal.thomsonreuters.com/en/products/westlaw-edge>.

supplemented the keyword or Boolean search strategy that has been the service's signature for decades. This suggests that rather than just matching words to keywords, the machine learning algorithms are trying to understand the meaning of the words.

Quick Check, another AI-powered function from Westlaw Edge, analyzes a draft argument to obtain additional insights or find important authority that may have been overlooked. It is interesting to note that Quick Check may even determine, possibly inadvertently, when a cited case has been reversed.

Virtual legal experts: AI is capable of producing and assessing content. AI does not have to be perfect all the time in this regard. In fact, part of what makes AI-created works (artefacts)[38] interesting is the unexpected and unique artefacts connected with them. Because AI approaches the creative process in fundamentally different ways than humans, the path followed, or the ultimate product, might be unexpected at times. This is known as "emergent behavior" in AI. Emergent behavior can lead to new methods for winning legal battles, new arguments, or just better ways of expressing legal ideas or opinions.

Human authors are still needed to control the creative process in the case of written content, deciding which of the numerous AI-generated words or variations to employ or reject.[39] To design legal contracts, for example, AI will need to be taught as a qualified lawyer. This necessitates the Ais inventor's collecting legal performance data on multiple kinds of contract wording, a process known as "labelling." This labelled data is then used to teach the AI how to create a suitable contract.

Robotic judges (bots):[40] Note that "bot" is a short form for "robot." Another great use of AI is to forecast legal outcomes. Assessing the possibility of a favorable outcome in a case may be quite beneficial. It enables an attorney to choose whether to take a case on contingency, how much to invest in their expertise, and whether to advise the client to settle. Firms like Lex Machina[41] employ machine learning and predictive analytics to forecast behaviors and results based on individual judges and lawyers as well as the court case itself.

Advice to judges: An even more "problematic" application of AI is counselling courts on bail and sentencing choices. Correctional Offender Management Profiling for Alternative Penalties

[38] A term used in the computer software programming domain for the delivery of a computer-developed application or software. https://www.researchgate.net/publication/325543677_Artefacts_in_Software_Engineering_What_are_they_after_all

[39] But the legal execution of a contract is frequently context-specific, not to mention jurisdiction-specific, and it is subject to an ever-changing body of law. Furthermore, because most contracts are never reviewed in court, their clauses remain untested and private to the parties.

[40] Matthew Stepka, "Law Bots: How AI Is Reshaping the Legal Profession" (21 February 2022), online: *Business Law Today from ABA* <https://businesslawtoday.org/2022/02/how-ai-is-reshaping-legal-profession>.

[41] Lex Machina's Outcome Analytics is a great example of this approach. See <https://lexmachina.com/outcome-analytics>.

(COMPAS)[42] is one of the applications used for this purpose. In many US states, criminal courts[43] employ COMPAS and comparable AI techniques to estimate the recidivism risk for defendants or convicted individuals when making decisions on pre-trial detention, punishment, or their early release.

Although there is much disagreement over the fairness or correctness of this system, courts are moving toward adapting an AI-based decision-making process. According to a ProPublica investigation,[44] such evaluation of the system appeared to be prejudiced[45] toward Black convicts, identifying them as substantially more likely to reoffend than white prisoners. *Equivant*, the company that created COMPAS, attempted to deny the ProPublica investigation and dismissed its racial bias results.[46]

Anyway, we should keep in mind that such AI-based applications have human authors, and the system can be improved, enhanced, and made free from any ambiguity or systemic bias. AI itself cannot be blamed for any wrongdoing or negative results!

V. Conclusion

While we argue the pros and cons of AI-based applications' role in our legal system, the fact is that AI is rapidly taking ground within the legal domain. New AI-based applications are coming to the fore and being used by many legal professionals. In fact, judges, lawyers, and paralegals[47] are not employed in the criminal and civil judicial systems to increase legal costs, delay matters, or become catalysts in denying access to justice: they are there to carry out fair justice in a timely manner.[48]

In short, our justice system should adapt to changing technological advancements and quickly work out an AI-based digital footprint. Working with AI within these parameters should be investigated, developed, tested, and put into practice if it can deliver justice more rapidly, more affordably, and without eroding public faith.

There is the possibility that the employment of AI may undermine public faith in the administration of justice, but that is an empirical topic that will be decided in cooperation with the general public.

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[42] COMPAS is a case management for courts application developed by Equivant that exclusively manages court workflow (JWorks CMS) and automates court operations. See <https://www.equivant.com/case-management-for-courts>.

[43] COMPAS is used by New York, Wisconsin, California, and Florida's Broadway County. See <https://en.wikipedia.org/wiki/COMPAS_(software)>.

[44] Jeff Larson et al, "How We Analyzed the COMPAS Recidivism Algorithm" (23 May 2016), online: *ProPublica* <https://www.propublica.org/article/how-we-analyzed-the-compas-recidivism-algorithm>.

[45] We should keep in mind that this AI-based application was developed by humans, so any prejudice or bias can be improved

[46] "Response to ProPublica: Demonstrating Accuracy Equity and Predictive Parity" (1 December 2018), online: *equivant* <https://www.equivant.com/response-to-propublica-demonstrating-accuracy-equity-and-predictive-parity/>.

[47] In Ontario only, and in other Canadian provinces it is an unregulated profession. However, per OCC, there are 7,700 working paralegals in the province.

[48] See Community Legal Education Association, "R v Jordan [2016] 1 SCR 631: Right to Be Tried Within a Reasonable Time" (n.d.), online (pdf): <https://www.communitylegal.mb.ca/wp-content/uploads/R.-v.-Jordan.pdf>.

Only those who have high confidence in the justice system—the public—can fully respond to questions of confidence in the justice system and whether to facilitate and deliver justice through AI, including the development of a taxonomy of the types of decisions that can or should be made using AI.

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